

STATE OF NEW YORK

370--A

2025-2026 Regular Sessions

IN SENATE

(Prefiled)

January 8, 2025

Introduced by Sen. SKOUFIS -- read twice and ordered printed, and when printed to be committed to the Committee on Investigations and Government Operations -- recommitted to the Committee on Investigations and Government Operations in accordance with Senate Rule 6, sec. 8 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the alcoholic beverage control law, in relation to allowing licensees to sell wine or liquor at retail for consumption off the premises to other licensees, and allowing such licensees to purchase and resell wine or liquor at retail for consumption off the premises

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Section 105 of the alcoholic beverage control law is
2 amended by adding a new subdivision 2-a to read as follows:

3 2-a. (a) Notwithstanding any provision of this chapter to the contra-
4 ry:

5 (i) A licensee issued under section sixty-three of this chapter shall
6 be authorized to purchase wine or liquor from, and to sell wine or
7 liquor to, any other licensee issued under section sixty-three of this
8 chapter, and may resell any wine or liquor so purchased for consumption
9 off the premises.

10 (ii) A licensee issued under section sixty-three of this chapter shall
11 be authorized to purchase wine from, and to sell wine to, a licensee
12 issued under section seventy-nine of this chapter, and may resell any
13 wine so purchased for consumption off the premises.

14 (iii) A licensee issued under section seventy-nine of this chapter
15 shall be authorized to purchase wine from, and sell wine to, any other
16 licensee issued under section seventy-nine or section sixty-three of

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 this chapter, and may resell any wine so purchased for consumption off
2 the premises.

3 (b) Both the selling and purchasing licensees shall retain a receipt
4 or invoice for each transaction authorized by this subdivision in
5 accordance with the authority's existing books and records requirements
6 and such records shall be made available for inspection by the authority
7 and its duly authorized agents upon request. The receipt or invoice
8 shall show, at a minimum:

9 (i) the name, address, and license number of the seller;

10 (ii) the name, address, and license number of the purchaser;

11 (iii) the date of the transaction;

12 (iv) a description of the alcoholic beverages transferred (brand and
13 quantity); and

14 (v) the price.

15 (c) The authority may promulgate rules and regulations necessary to
16 implement the provisions of this subdivision.

17 § 2. This act shall take effect on the one hundred eightieth day after
18 it shall have become a law. Effective immediately, the addition, amend-
19 ment and/or repeal of any rule or regulation necessary for the implemen-
20 tation of this act on its effective date are authorized to be made and
21 completed on or before such effective date.